

Individual Privacy Act, 2018

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Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Act Relating to Personal Privacy, 2075".

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Residence" means a house, tenement, apartment, room, or dwelling place where any person resides, and the said term also includes a room of a hotel, resort, lodge, guest house, or camp where such person stays overnight, or any other place of a similar nature.

(b) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(c) "Personal Information" means the following information relating to any person:-

(1) His/her caste, ethnicity, birth, origin, religion, color, or marital status,

(2) His/her education or educational qualification,

(3) His/her address, telephone, or electronic mail (email) address,

(4) His/her passport, citizenship certificate, national identity card number, driving license, voter identity card, or details of identity documents issued by a public body,

(5) A letter sent by him/her to someone or received by him/her containing personal information,

(6) His/her fingerprint, palm print, retina, blood group, or other biometric information,

(7) His/her criminal background or details of his/her having been punished for or having served a sentence for a criminal offense,

(8) What kind of opinion or view was expressed in such process by a person providing professional or expert opinion in a decision-making process.

(d) "Property" means movable or immovable, tangible or intangible, corporeal or incorporeal property, and the said term also includes intellectual property.

(e) "Public Body" means the following bodies:-

(1) The Government of Nepal, a Provincial Government, or a Local Level, or government offices under the Government of Nepal, a Provincial Government, or a Local Level,

(2) Courts, other judicial bodies, constitutional bodies, or subordinate offices,

(3) Regulatory bodies or offices under them,

(4) Companies, banks, committees fully or partially owned or controlled by the Government of Nepal, a

Provincial Government, or a Local Level, or commissions, institutions, authorities, corporations, foundations, boards, centers, councils, and other organized institutions of a similar nature established by the Government of Nepal, a Provincial Government, or a Local Level pursuant to law,

(5) Political parties and organizations registered pursuant to the prevailing law,

(6) Universities, colleges, schools, research centers, and other similar academic or educational institutions established or operated by the Government of Nepal, a Provincial Government, or a Local Level, or receiving full or partial grants from the Government of Nepal, a Provincial Government, or a Local Level,

(7) Institutions operating on loans, grants, or guarantees of the Government of Nepal, a Provincial Government, or a Local Level,

(8) Institutions fully or partially owned or controlled by an institution referred to in sub-clauses (1), (2), (3), or (4),

(9) Any other institution designated as a public body by the Government of Nepal by publishing a notice in the Nepal Gazette.

(f) "Person holding a public office" means a person elected, nominated, or appointed to and currently serving in any post of a public body.

(g) "Organized Institution" means an institution, company, bank, committee, cooperative association, federation, or other organized institutions of a similar nature established pursuant to the prevailing law.

Chapter-2

Personal and Family Privacy

3. Privacy of Physical and Private Life of a Person: (1) The privacy of matters relating to the physical and mental condition of every person shall be inviolable.

(2) Matters relating to the physical privacy of any person shall remain inviolable without the consent of the concerned person, except during the medical or health examination, treatment, or emergency rescue operation of such person.

(3) Every person shall have the right to maintain the privacy of matters such as biological or genetic identity, gender identity, sexuality, sexual relations, conception or abortion, virginity, masculinity, impotence, or physical disease relating to his/her private life.

(4) No person shall, in a manner that affects, traumatizes, or dishonors the private life of any person, make public or cause to be made public, by writing, speaking, publishing, using electronic means, or in any other way, any of the matters referred to in subsection (3) relating to such person.

(5) Notwithstanding anything contained elsewhere in this section, the privacy of a person's physical or mental condition or private life may be disclosed in the following circumstances:-

(a) If the matter is one for which the consent of the concerned person has been obtained,

(b) If the matter is one which the concerned person has voluntarily made public themselves,

(c) If the matter is one investigated by an officer authorized to conduct investigation or prosecution in the course of an offense,

(d) If, in order to obtain any facility or concession, the matter relating to subsection (3) or the person's physical condition or private life needs to be disclosed, and such person has obtained or desires to obtain such facility or concession. 4. Family Privacy to be Maintained: (1) Every person shall have the right to maintain family privacy for maintaining family life or family integrity.

(2) Matters relating to the privacy of each other that are known only between the husband and wife during the course of marital life shall be inviolable, except when necessary in the context of a case pending between the husband and wife. 5.

Not to Conduct Body Search: (1) No person shall be searched, nor shall any object in his/her possession or used by him/her be searched, without obtaining the consent of such person. (2) Notwithstanding anything contained in subsection (1), if it is necessary to search a person in the course of a security check or investigation of a criminal offense pursuant to the prevailing law, a search may be conducted by an officer authorized by law or by any person or security personnel deployed for security purposes under the order of such officer. (3) An officer deployed for conducting a security check pursuant to subsection (2) shall carry the authorization received by him/her for the security check and shall show it to the concerned person if he/she wishes to see it before the search is conducted. (4) For the purposes of this section, security personnel deployed on duty wearing insignia and uniform according to their rank for regular or emergency security checks in any public place shall be deemed to have the authorization for security checks. 6. Privacy Relating to Reproductive Health and Pregnancy: The matters relating to the reproductive health and pregnancy of every woman shall be inviolable, and without her consent, information on such matters shall not be given to anyone else or made public. Provided that it shall not be deemed an obstacle to discuss such matter among concerned experts during the course of health treatment, or to inform the spouse or family member of such person, or if the person is below eighteen years of age or not of sound mind, to inform his/her guardian. Chapter-3 Privacy Relating to Residence 7.

Privacy of Residence to be Maintained: (1) Every person shall have the right to privacy of his/her residence. (2) No person shall enter or cause to enter, or search or cause to search, the residence of any person, except by an officer authorized by law to conduct a search or under the order of such officer. (3) While entering pursuant to subsection (2), no person shall enter or cause to enter, or search or cause to search, in a manner that violates the privacy of the private life of the concerned person or a member of his/her family. (4) If a person is arrested outside his/her residence by an officer authorized by law or under the order of such officer, his/her residence shall not be searched or caused to be searched solely on the ground of such arrest. (5) If, upon arrest of a person pursuant to subsection (4), there are reasonable grounds to also search his/her residence, a separate order from an officer authorized by law shall be obtained for that purpose, and the residence may be searched accordingly. (6) Notwithstanding anything contained elsewhere in this section, entry into the residence of any person may be made for the purpose of disaster management or emergency rescue. (7) Matters relating to maintaining the privacy of residence and other provisions relating to search or investigation shall be as per the prevailing law. 8. Notice to be Given While Entering Residence: (1) If it is necessary to search someone's residence pursuant to section 7 in the course of a criminal offense, a written notice shall be given to such person stating the purpose for which entry into the residence is required. (2) While entering any person's residence pursuant to subsection (1), the conditions and procedures pursuant to the prevailing law shall be fulfilled. Provided that, if the accused is likely to flee or escape or evidence is likely to be destroyed if the search is not conducted immediately, entry may be made by recording such fact. 9. Not to Install CCTV Camera in Residence: No person shall, without the consent of any person, install or cause to be installed a CCTV camera in his/her residence or in a manner that collects personal information relating to

the user of such residence. Chapter-4 Privacy Relating to Property 10.

Privacy of Property to be Maintained: (1) Every person shall have the right to keep his/her property and details of such property confidential. (2) No person shall, without the permission or consent of the owner of another person's house, land, vehicle, or other property, enter such property in an unauthorized manner. (3) No public body or organized institution that maintains details of a person's property or may have knowledge thereof, nor any employee working in such institution, shall, without the consent of the concerned person, in any manner, inform or make public or cause to be made public the details of any person's property to anyone else. (4) Notwithstanding anything contained in subsection (1) or (3), if the property details are requested under the order of an authorized officer in the course of an investigation of an offense, or are requested by a court in the context of a case filed against a person on the same subject, the concerned body, organized institution, or officer maintaining the record of property details shall provide such record. Chapter-5 Privacy Relating to Documents 11.

Privacy of Documents to be Maintained: (1) Every person shall have the right to privacy of personal documents relating to him/her. (2) For the purposes of subsection (1), the following documents shall be considered personal documents of the concerned person:- (a) Certificates relating to educational qualification, (b) Medical history, certificates, or health examination reports, (c) Citizenship certificate, passport, voter identity card, driving license, or other documents of a similar nature disclosing identity, (d) Account held in a bank or details of the amount in such account, (e) Cheques, drafts, debit cards, credit cards, bank account statements, or other negotiable instruments relating to banking and financial transactions, (f) Biological or genetic details (biometric data) and thumbprints/signatures, (g) Land ownership certificates relating to immovable property or other documents relating to land ownership, (h) Vehicle ownership documents (blue book) or documents relating to ownership of other property, (i) Securities or details relating thereto, (j) Employees Provident Fund identity card, pension document, or other documents of a similar nature, (k) Other documents as prescribed. (3) No person shall make public or cause to be made public the personal documents referred to in subsection (2) of any person held by a public body. (4) Notwithstanding anything contained in subsection (1) or (3), the personal documents of any person or any details thereof may be made public or caused to be made public, or any details thereof may be studied, researched, or examined or caused to be studied, researched, or examined, in the following circumstances:- (a) If the consent of the concerned person is obtained, (b) If an identity document disclosing a person's identity is required for the purpose of availing public service, (c) If there is an order from a court or an officer authorized by law in the course of a case, (d) If an order is given by an authorized officer in the course of investigation or prosecution of a criminal offense. Chapter-6 Privacy Relating to Data 12. Privacy of Data to be Maintained: (1) Every person shall have the right to keep personal data or details relating to him/her confidential. (2) While collecting personal or family data of any person, his/her consent shall be obtained. (3) Data collected by a public body or organized institution with the consent of the concerned person pursuant to subsection (2) shall be used only for the purpose for which it was collected.

Provided that, if data is requested for the purpose of national security or peace and order, it shall not be deemed an obstacle to provide such data pursuant to the prevailing law.

(4) Without the consent of any person, no one shall give or make public or cause to be made public to anyone else the following data relating to him/her:-

(a) Details relating to health examination,

(b) Details relating to property and income,

- (c) Details relating to employment,
- (d) Details relating to family matters,
- (e) Biological details and thumbprints/signatures,
- (f) Signature or electronic signature,
- (g) Political affiliation and details relating to elections,
- (h) Details relating to business or transaction.

(5) Notwithstanding anything contained in subsection (4), if it is necessary to provide any personal data or details to a court or a body or officer authorized by law in the course of investigation of a criminal offense, such data or details shall be provided.

(6) Notwithstanding anything contained in subsection (4), if a question arises regarding matters such as a person's age, qualification, character, sexuality, disability, and an authorized officer requests, the concerned person shall provide such details or documents. Chapter-7

Privacy Relating to Correspondence

13. Privacy of Correspondence to be Maintained: (1) Every person shall have the right to maintain the privacy of his/her letters, correspondence, electronic mail (email), communication transmitted through electronic means, or other correspondence of a similar nature.

(2) No person shall, without authorization, read, view, make available to anyone else, publish, transmit, or in any other way make public, the letters, correspondence, electronic mail (email), communication transmitted through electronic means, or other correspondence of a similar nature of any person as per subsection (1).

(3) Notwithstanding anything contained in subsection (2), with the consent of the concerned person or under the order of an officer authorized pursuant to the prevailing law in the course of investigation of a criminal offense, the letters, correspondence, electronic mail (email), communication transmitted through electronic means, or other correspondence of a similar nature of any person may be made available or caused to be made available. 14. Not to Open Letters: (1) No person shall, without authorization, open or cause to be opened anyone's personal letters, except with the consent of the concerned person or under the order of an officer authorized pursuant to the prevailing law in the course of investigation of a criminal offense.

(2) No person shall open, view, or forward (forward) the electronic mail (email) of another person. Chapter-8

Privacy Relating to Character

15.

Privacy of Character to be Maintained: (1) Every person shall have the right to maintain the privacy of his/her character, personal conduct, and behavior. (2) If any question arises regarding the character, conduct, or behavior of a person, no one shall make any comment regarding his/her character, except in the course of an investigation into the matter and action pursuant to law. (3) No person shall do or cause to be done any act, or make public or cause to be made public any matter relating to his/her conduct or behavior, in a manner that damages the character of any person, causes his/her disgrace or insult, hurts his/her self-respect, or adversely affects his/her family life. 16. Not to Click or Sell Photos: (1) No person shall, without the consent of any person, click his/her photo in a manner that harms his/her character or social reputation, or with the intent

to defame him/her, create another photo in any manner by placing his/her photo with someone else's photo, or create another photo by merging part of one person's photo with another part of another person's photo, publish, make public, or cause to be made public. (2) Notwithstanding anything contained in subsection (1), if someone clicks a photo in a public place or while clicking a photo of a person, the photo of another person present in such place is also incidentally captured, such act shall not be deemed an offense. Provided that the photo incidentally captured shall not be used contrary to subsection (1). (3) No person shall, with the intent to harass, trouble, take any undue advantage from any person, or gain advantage by commercial use of the photo, publish, publicize, buy, sell, or make public or cause to be made public the photo of any person without his/her consent. 17. Not to Make Public a Person Under Investigation: Until a charge sheet is filed in the concerned body regarding an offense alleged against any person under investigation pursuant to law, an authorized officer shall not make public or cause to be made public such person in any manner. Provided that it shall not be an obstacle to make public the name of the person so accused and the details or information of the accusation against him/her. 18. Not to Disclose Confidential Matters: If someone has learned from a person in the course of his/her professional work any matter relating to someone's conduct, such person shall not disclose such matter to anyone, except with the consent of the concerned person or under the order of an authorized officer. Chapter-9 Electronic Means and Privacy 19.

Privacy of Electronic Means to be Maintained: (1) Every person shall have the right to maintain the privacy of any personal information, documents, correspondence, data, or matters relating to character in electronic means. (2) No person shall, without authorization, obtain, breach the privacy of, or make available to anyone else without authorization, the information, knowledge, or correspondence of any person in electronic means. (3) No person shall, without the consent of the concerned persons or an order from an officer authorized by law, use any mechanical device to listen to any communication or conversation between two or more persons via electronic means, or record or cause to be recorded the sound thereof. Provided that the provisions of this subsection shall not apply to speeches or statements made publicly. (4) Notwithstanding anything contained in subsection (2) or (3), with the consent of the concerned person or under the order of an authorized officer, any information, knowledge, or correspondence may be listened to, sound recorded or caused to be recorded. (5) Other provisions relating to the privacy of electronic information and data shall be as prescribed. 20. Relating to Installing CCTV Cameras in Public Places: (1) If it is necessary to install CCTV cameras in any public place, such cameras may be installed or caused to be installed in places other than toilets, bathrooms, or changing rooms. (2) In a place where CCTV cameras are installed pursuant to subsection (1), a notice shall be provided in a manner visible and known to all about the installation of such cameras. (3) Provisions relating to installing CCTV cameras in any place shall be as prescribed. 21. Not to Conduct Surveillance or Espionage: No electronic means, photography, or method shall be used to conduct surveillance or espionage of any person's residence or any office, or with the intent to obtain any matter that is confidential under this Act. 22. Not to Use Drones: Except for the border areas of the country or public places, no kind of drone or device of a similar nature shall be used, nor shall any act be done with the intent to obtain any confidential information, without the permission of an authorized officer or such person, in any public body, area of archaeological importance, building of a security agency, protected area, or area containing mines and minerals, or in any person's residence. Chapter-10 Collection and Protection of Personal Information 23.

Not to Collect Personal Information Except Pursuant to Law: (1) No person other than an officer authorized by law or a person permitted by such officer shall collect, store, protect, analyze, process, or publish personal information of any person. (2) Notwithstanding anything contained in subsection (1), for the purpose of conducting a study or research on a specific subject or collecting public opinion, information provided by the

concerned person may be collected with his/her consent. (3) While collecting information pursuant to subsection (2), it shall not be collected without providing full information to such person about the purpose for which the information is being collected. Explanation: If information regarding the subject of data collection is disseminated or made public through mass media addressing the general public, such information shall be deemed to have been provided for the purposes of this section. (4) While collecting information pursuant to subsection (2), the following matters shall be clearly mentioned:- (a) Time of information collection, (b) Subject matter of the information, (c) Nature of the information, (d) Purpose of information collection, (e) Method and procedure of information examination, (f) Assurance regarding the confidentiality of the collected information, (g) Matters including the security of the collected information. (5) When an officer authorized by law to collect information collects information of any person, it shall be collected by obtaining information from the concerned person themselves. (6) Notwithstanding anything contained in subsection (5), the following persons may provide information on behalf of the following persons:- (a) In the case of a person below the age of eighteen years or not of sound mind, if providing such information is not detrimental to his/her interest, his/her guardian or custodian, (b) In the case of another person, his/her agent or representative authorized by him/her. (7) An authorized officer pursuant to subsection (1) shall not collect personal information except in the following circumstances:- (a) If such officer has collected personal information exercising authority pursuant to the same law under which he/she collects it, (b) If there is a provision in the prevailing law for such officer to collect such information, (c) If collected in the course of investigation, prosecution, or court proceedings of a criminal offense, or law enforcement, (d) If an organized institution or public body collects information regarding a person who is currently holding or is about to hold any post in such institution, or such information falls under the approved program of such institution or body. (8) Other provisions relating to the collection, processing, analysis, and use of personal data shall be as prescribed. 24.

26. Not to Use Personal Information Without Consent: (1) Personal information collected by a public body or organized institution or under the charge or control of such body or institution shall not be used or given to anyone without the consent of the concerned person, except in the following circumstances:-

- (a) If the personal information has been made public or distributed for the same purpose for which it was collected,
- (b) If requested in writing by an officer authorized to conduct investigation or prosecution in the course of investigation or prosecution of a criminal case,
- (c) If ordered by a court in the course of proceedings of a case pending in court,
- (d) If a question arises regarding the qualification or any other matter of a person holding a public office pursuant to the prevailing law, and it is necessary to resolve it,
- (e) If a question on a specific subject arises and a specific type of information is requested in writing by an authorized officer to resolve it.

(2) Notwithstanding anything contained in subsection (1), an authorized officer of the body responsible for collecting or protecting personal information may make public or cause to be made public any personal information for the purpose of study or research conducted for public purpose in the following circumstances:-

- (a) If the subject being researched cannot be completed without personal identification,
- (b) If providing personal information for the purpose of research does not cause harm or loss to the concerned person,

(c) If the concerned person has consented at the time of receiving personal information for public purpose or at any time thereafter.

(3) Notwithstanding anything contained in this section, personal information may be provided for the purposes of an officially established archive by the Government of Nepal or a Provincial Government in the following circumstances:-

(a) If it is information that does not adversely affect the personal status, professional or personal privacy of the concerned person,

(b) If such information is provided for historical research or collection or compilation of historical facts or information,

(c) If it is personal information of a person and thirty years or more have elapsed since the death of such person,

Provided that, if making such personal information public causes dishonor to such person or causes any kind of harm, loss, or dishonor to his/her heirs or descendants, such information shall not be provided.

(d) If such information has been archived for one hundred years or more. 27.

Not to Process Sensitive Information: (1) A public body shall not process or cause to be processed any sensitive personal information under its charge or control. (2) For the purposes of subsection (1), the following information shall be considered sensitive personal information of the concerned person:- (a) His/her caste, ethnicity, or origin, (b) Political affiliation, (c) Religious faith or belief, (d) Physical or mental health or condition, (e) Sexual orientation or events relating to sexual life, (f) Details relating to property. (3) Notwithstanding anything contained in subsection (2), such information may be processed in the following circumstances:- (a) In the course of prevention of disease, protection of public health, disease diagnosis, health treatment, management of health institutions, and provision of health services by a licensed medical practitioner of the concerned subject or, under his/her direction, by a health worker in a manner that does not cause dishonor or humiliation to the concerned person, (b) If the concerned person has already made the information public. 28. Application May Be Filed to Correct Information: (1) If any person believes that any information relating to him/her held under the charge, protection, or control of a public body is incorrect or not based on facts, such person may, at any time, file an application in the prescribed format with the concerned public body to correct and rectify such information. Provided that, if such person has already received any benefit, advantage, or facility based on such information, he/she shall not be allowed to file an application to correct it. (2) While filing an application pursuant to subsection (1), such person shall submit details of the reasons why such information is incorrect or not based on facts, along with evidence to confirm or verify the facts or details claimed by him/her. (3) Upon receipt of an application pursuant to subsection (1), the public body shall conduct an inquiry as prescribed and, if it appears necessary to correct and rectify such information, may make necessary corrections and rectify it. Chapter-11 Offenses and Penalties 29.

Offenses and Penalties: (1) If any person commits or causes to be committed any of the following acts, he/she shall be deemed to have committed an offense under this Act:- (a) Any act contrary to subsections (1), (2), and (4) of section 3, (b) Any act contrary to subsection (2) of section 4, (c) Any act contrary to subsection (1) of section 5, (d) Any act contrary to section 6, (e) Any act contrary to subsections (2), (3), and (4) of section 7, (f) Any act contrary to section 9, (g) Any act contrary to subsections (2) and (3) of section 10, (h) Any act contrary to subsection (3) of section 11, (i) Any act contrary to subsection (4) of section 12, (j) Any act contrary to subsection (2) of section 13, (k) Any act contrary to section 14, (l) Any act contrary to

subsections (2) and (3) of section 15, (m) Any act contrary to section 16, (n) Any act contrary to section 18, (o) Any act contrary to subsections (2) and (3) of section 19, (p) Any act contrary to section 21, (q) Any act contrary to section 22, (r) Any act contrary to subsections (1), (3), and (7) of section 23, (s) Any act contrary to subsection (1) of section 26, (t) Any act contrary to subsection (1) of section 27. (2) For an offense under subsection (1), the penalty shall be imprisonment for a term up to three years or a fine of up to thirty thousand rupees, or both. (3) The offense under clauses (c), (e), (p), (q), (r), (s), or (t) of subsection (1) shall be a state case, and such offense shall be deemed to be included in Schedule-1 of the National Criminal Procedure (Code) Act, 2074. 30. Complaint May Be Filed: (1) Except as mentioned in subsection (3) of section 29, for any other offense under this Act, the concerned person may file a complaint in the concerned District Court. (2) While filing a complaint pursuant to subsection (1), it must be filed within three months from the date of such act. 31. Compensation: (1) If any person suffers any kind of harm, loss, or damage due to an act deemed an offense or any other act under this Act, the concerned or aggrieved person may file a complaint in the concerned District Court to also recover compensation for such harm, loss, or suffering. (2) Upon receipt of a complaint pursuant to subsection (1), if the concerned District Court finds it necessary to award compensation, it shall order the offender to pay reasonable compensation to the aggrieved person. 32.

34. Not Deemed to be an Obstruction: (1) Nothing contained in this Act shall be deemed to obstruct the doing of the following in relation to the persons mentioned in subsection (2):-

- (a) To obtain any information or knowledge in the course of court proceedings,
- (b) To obtain any personal information or details in relation to investigating or prosecuting an offense according to law,
- (c) To make public details of his/her property pursuant to the prevailing law,
- (d) To make public by the concerned body details disclosing identity including his/her educational qualification, citizenship, passport, driving license,
- (e) To publish or transmit or in any manner make public any information, knowledge, data, news, photo obtained or collected in the course of maintaining public interest and transparency or conducting investigative journalism, except matters prohibited by the prevailing law relating to printing press and newspapers and national broadcasting, provided that it is not contrary to the fundamental norms of personal privacy,
- (f) To publish or transmit statements, views expressed publicly by him/her, or audio-visual materials and photos taken at a publicly organized event,
- (g) To make healthy comments with basis, reason, or evidence regarding details of his/her property and details pursuant to clause (d), or statements, views expressed publicly by him/her, or details relating to his/her public work.

(2) For the purposes of subsection (1), "person" means the following persons:-

- (a) A person holding a public office,
- (b) A person who has joined the formal process of appointment, nomination, or election to a public office or has been recommended for such office,
- (c) A person who has retired or been released from a public office,
- (d) A person who is publicly known or falls under public interest or concern,

(e) A person who, for reasons of public interest, integrity, or morality, or because an act contrary to law has been or is about to be committed, appears to require the dissemination of information or knowledge to the general public. 35. Not to Act Contrary to This Act: Any public information dissemination body shall disseminate information in a manner not contrary to this Act. 36. Power to Make Rules: The Government of Nepal may make necessary rules for the implementation of this Act.

Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Personal Privacy Act, 2075".

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Residence" means any house, tenement, apartment, room or dwelling place where any person resides, and the term shall also denote any hotel, resort, lodge, guest house or a room in a camp where such person stays overnight, or any other place of a similar nature.

(b) "Prescribed" or "as prescribed" means prescribed or as prescribed under the rules made under this Act.

(c) "Personal Information" means the following information relating to any person:-

(1) His/her caste, ethnicity, birth, origin, religion, color or marital status,

(2) His/her education or academic degree,

(3) His/her address, telephone or e-mail address,

(4) His/her details of passport, citizenship certificate, national identification card number, vehicle driver's license, voter ID card or identification documents issued by a public body,

(5) Letters sent by him/her to anyone or received by him/her, containing personal information,

(6) His/her fingerprint, palm print, retina, blood group or other biometric information,

(7) His/her criminal background or details of his/her conviction for a criminal offence or serving a sentence,

(8) What opinion or view was expressed by a person giving professional or expert opinion in any decision-making process.

(d) "Property" means movable or immovable, physical or non-physical, tangible or intangible property, and the term shall also denote intellectual property.

(e) "Public Body" means the following bodies:-

(1) The Government of Nepal, a Provincial Government or a Local Level, or a government office under the Government of Nepal, Provincial Government or Local Level,

(2) A court, other judicial body, constitutional body or offices subordinate thereto,

(3) A regulatory body or offices subordinate thereto,

(4) A company, bank, committee fully or partially owned or controlled by the Government of Nepal, Provincial Government or Local Level, or a commission, corporation, authority, public corporation, foundation, board,

center, council and other organized institutions of a similar nature established by the Government of Nepal, Provincial Government or Local Level pursuant to law,

(5) Political parties and organizations registered under the prevailing law,

(6) Universities, colleges, schools, research centers and other academic or educational institutions of a similar nature established or operated by the Government of Nepal, Provincial Government or Local Level, or receiving full or partial grants from the Government of Nepal, Provincial Government or Local Level,

(7) Institutions operating with loans, grants or guarantees from the Government of Nepal, Provincial Government or Local Level,

(8) Institutions fully or partially owned or controlled by the institutions referred to in sub-clauses (1), (2), (3) or (4),

(9) Any other institution designated by the Government of Nepal as a public body by publishing a notice in the Nepal Gazette.

(f) "Person holding a public office" means a person who is elected, nominated or appointed to any position in a public body and is currently serving in that position.

(g) "Organized Institution" means an institution, company, bank, committee, cooperative society, federation or other organized institution of a similar nature established under the prevailing law.

Chapter-2

Privacy of an Individual's Body and Family

3. Privacy of an Individual's Physical and Private Life: (1) The privacy of matters relating to the physical and mental condition of every person shall be inviolable.

(2) Matters concerning the physical privacy of any person shall remain inviolable without the consent of the person concerned, except when examining his/her body or health, providing treatment, or conducting emergency rescue operations.

(3) Every person shall have the right to maintain the privacy of matters such as biological or genetic identity, gender identity, sexuality, sexual relations, conception or abortion, virginity, masculinity, impotence or physical disease relating to his/her private life.

(4) No person shall publicize or cause to be publicized, in a manner that affects, traumatizes or insults the private life of any person, any matters referred to in sub-section (3) relating to such person by writing, speaking, publishing or using electronic means or in any other manner.

(5) Notwithstanding anything contained elsewhere in this Section, the privacy of a person's physical or mental condition or private life may be disclosed in the following circumstances:-

(a) If it is a matter in respect of which the person concerned has given consent,

(b) If it is a matter which the person concerned has voluntarily made public,

(c) If it is a matter investigated by an officer authorized to investigate or prosecute, in relation to an offence,

(d) If, in order to obtain any facility or concession, it is necessary to disclose matters relating to sub-section (3) or the physical condition or private life of the person, and he/she has obtained or desires to obtain such

facility or concession. 4. Family Privacy to be Maintained: (1) Every person shall have the right to maintain family privacy in order to maintain family life or maintain family integrity.

(2) Matters relating to the privacy of each other, of which only the husband and wife are aware during marital life, shall be inviolable except when necessary in the context of a case brought between the husband and wife. 5.

Not to Conduct Body Search: (1) No person shall be searched, nor shall any object in his/her possession or used by him/her be searched, without his/her consent. (2) Notwithstanding anything contained in sub-section (1), if it is necessary to search a person in the course of a security check or investigation of a criminal offence under the prevailing law, a search may be conducted by an authorized officer pursuant to law or by any person or security personnel deployed for security purposes on the order of such officer. (3) An officer deployed to conduct a security check pursuant to sub-section (2) shall keep the authority received by him/her for the security check on his/her person, and shall show it to the person concerned if he/she wishes to see it before the search is carried out. (4) For the purposes of this Section, a security personnel deployed on duty wearing rank insignia and uniform for regular or emergency security checks at any public place shall be deemed to have the authority for security checks. 6. Privacy Relating to Reproductive Health and Pregnancy: Matters relating to the reproductive health and pregnancy of every woman shall be inviolable, and information on such matters shall not be given to anyone else or made public without her consent. Provided, however, that this shall not prevent discussion on such matters among relevant specialists during the course of medical treatment or informing the immediate family members or, if the person is a minor below eighteen years of age or is of unsound mind, informing his/her guardian. Chapter-3 Privacy Relating to Residence 7.

Privacy of Residence to be Maintained: (1) Every person shall have the right to privacy of his/her residence. (2) No person shall enter or cause to be entered, or search or cause to be searched, the residence of any person except by an officer authorized to conduct a search under the law or on the order of such officer. (3) When entering pursuant to sub-section (2), entry or causing entry, or search or causing search shall not be conducted in a manner that violates the privacy of the private life of the person concerned or a member of his/her family. (4) If a person is arrested outside his/her residence by an officer authorized under the law or on the order of such officer, his/her residence shall not be searched or caused to be searched solely on the ground of such arrest. (5) If, upon the arrest of a person pursuant to sub-section (4), there is reasonable cause to also search his/her residence, the residence of such person may be searched for that purpose upon obtaining a separate order from an officer authorized under the law. (6) Notwithstanding anything contained elsewhere in this Section, entry may be made into the residence of any person for the purpose of disaster management or emergency rescue. (7) Other provisions relating to maintaining the privacy of residence and search or investigation shall be as per the prevailing law. 8. Notice to be Given When Entering Residence: (1) If it is necessary to search someone's residence under Section 7 in connection with a criminal offence, a written notice shall be given to such person clearly stating the purpose for which entry into the residence is required. (2) When entering the residence of any person pursuant to sub-section (1), the conditions and procedures prescribed by the prevailing law shall be complied with. Provided, however, that if the accused person is likely to flee or escape or evidence is likely to be destroyed if the search is not conducted immediately, entry may be made keeping a record of that fact. 9. Not to Install CCTV Cameras in Residence: No person shall install or cause to be installed CCTV cameras in the residence of any person without his/her consent, in a manner that collects personal information relating to the user of such residence. Chapter-4 Privacy Relating to Property 10.

Privacy of Property to be Maintained: (1) Every person shall have the right to keep confidential his/her

property and details relating to such property. (2) No person shall enter another person's house, land, vehicle or other property in an unauthorized manner without the permission or consent of the owner of such property. (3) No public body or organized institution, which keeps details of a person's property or may have knowledge thereof, or any employee working in such institution shall, without the consent of the person concerned, inform anyone else or make public or cause to be made public the details of any person's property in any manner. (4) Notwithstanding anything contained in sub-section (1) or (3), if details of property are requested by order of an authorized officer in the course of investigation of an offence, or are requested by a court in the context of a case filed against any person on the same subject, the concerned body, organized institution or officer maintaining records of property details shall make such records available. Chapter-5 Privacy Relating to Documents 11.

Privacy of Documents to be Maintained: (1) Every person shall have the right to privacy of personal documents relating to him/her. (2) For the purposes of sub-section (1), the following documents shall be considered personal documents of the person concerned:- (a) Certificate relating to educational qualification, (b) Medical history, certificate or health examination report, (c) Citizenship certificate, passport, voter ID card, vehicle driver's license or other documents of a similar nature revealing identity, (d) Details of an account held in a bank or the amount in such account, (e) Cheques, drafts, debit cards, credit cards or bank statements or other negotiable instruments relating to banking and financial transactions, (f) Biometric data and thumbprint signature, (g) Land ownership certificate relating to immovable property or other documents relating to land ownership, (h) Vehicle ownership document (blue book) or other documents relating to ownership of property, (i) Securities or details relating thereto, (j) Employee Provident Fund card, pension certificate or other documents of a similar nature, (k) Other documents as prescribed. (3) No person shall make public or cause to be made public the personal documents referred to in sub-section (2) of any person held in a public body. (4) Notwithstanding anything contained in sub-section (1) or (3), the personal documents of any person or any details thereof may be made public or caused to be made public, or any details thereof may be studied, researched or examined or caused to be studied, researched or examined in the following circumstances:- (a) If the person concerned has consented, (b) If an identification document revealing a person's identity is required for the purpose of availing public service, (c) If there is an order from a court or an officer authorized under the law in the course of a case, (d) If an order is given by an authorized officer in the course of investigation or prosecution of a criminal offence. Chapter-6 Privacy Relating to Data 12. Privacy of Data to be Maintained: (1) Every person shall have the right to keep confidential personal data or details relating to him/her. (2) The consent of any person shall be obtained when collecting his/her personal or family data. (3) Data collected by a public body or organized institution with the consent of the person concerned pursuant to sub-section (2) shall be used only for the purpose for which it was collected.

Provided, however, that if data is requested for the purpose of national security or peace and order, being required to provide such data under the prevailing law shall not be deemed an obstruction.

(4) No person shall, without the consent of any person, give or make public or cause to be made public the following data relating to him/her to anyone else:-

- (a) Details relating to health examination,
- (b) Details relating to property and income generation,
- (c) Details relating to employment,
- (d) Details relating to family matters,

- (e) Biometric details and thumbprint signature,
- (f) Signature or electronic signature,
- (g) Details relating to political affiliation and elections,
- (h) Details relating to profession or business.

(5) Notwithstanding anything contained in sub-section (4), if it is necessary to make available any personal data or details to a court or a body or officer authorized under the law in the course of investigation of a criminal offence, such data or details shall be made available.

(6) Notwithstanding anything contained in sub-section (4), if a question arises regarding matters such as age, qualification, character, sexuality, disability of any person and an authorized officer makes a request, the person concerned shall make available such details or documents. Chapter-7

Privacy Relating to Correspondence

13. Privacy of Correspondence to be Maintained: (1) Every person shall have the right to maintain the privacy of his/her letters, correspondence, e-mails, communications transmitted through electronic means, or other correspondence of a similar nature.

(2) No person shall, in an unauthorized manner, read, view, make available to anyone else, publish, transmit or make public in any other manner, the letters, correspondence, e-mails, communications transmitted through electronic means, or other correspondence of a similar nature referred to in sub-section (1) of any person.

(3) Notwithstanding anything contained in sub-section (2), with the consent of the person concerned or by order of an officer authorized under the prevailing law in the course of investigation of a criminal offence, the letters, correspondence, e-mails, communications transmitted through electronic means, or other correspondence of a similar nature of any person may be made available or caused to be made available.

14. Not to Open Letters: (1) No person shall open or cause to be opened the personal letters of anyone in an unauthorized manner except with the consent of the person concerned or upon an order of an officer authorized under the prevailing law in the course of investigation of a criminal offence.

(2) No person shall open, view or forward the e-mail of another person. Chapter-8

Privacy Relating to Character

15.

Privacy of Character to be Maintained: (1) Every person shall have the right to maintain the privacy of his/her character, personal conduct and behavior. (2) If any question arises regarding the character, conduct or behavior of any person, no one shall make any comment regarding his/her character except in the course of conducting an inquiry and taking action under the law in relation thereto. (3) No person shall do or cause to be done any act that harms the character of any person, leads to his/her defamation or insult, hurts his/her self-esteem, or adversely affects his/her family life, nor shall make public or cause to be made public anything regarding his/her conduct or behavior. 16. Not to Take or Sell Photographs: (1) No person shall, without the consent of any person, take his/her photograph in a manner that harms his/her character or social reputation, or with the intention to defame him/her, create another photograph in any manner by combining his/her photograph with another person's photograph, or create, publish or make public or cause to be made public a

different photograph by combining part of one person's photograph with part of another person's photograph. (2) Notwithstanding anything contained in sub-section (1), if someone takes a photograph of any public place or person, and the photograph of any other person present in such place is also incidentally captured, it shall not be deemed an offence. Provided, however, that the photograph so incidentally captured shall not be used contrary to sub-section (1). (3) No person shall, with the intention of harassing, bothering any person, taking any undue advantage from him/her, or gaining benefit through commercial use of the photograph, publish, publicize, buy, sell or make public or cause to be made public the photograph of any person without his/her consent. 17. Not to Publicize Person Under Investigation: An authorized officer shall not make public or cause to be made public, in any manner, any person who is under investigation under the law, in relation to the offence alleged against him/her, until a charge sheet is filed in the concerned body. Provided, however, that this shall not prevent the publication of the name of the person so accused and the details or information of the accusation against him/her. 18. Not to Disclose Confidential Matters: If any person has obtained information regarding the conduct of someone else from a person in the course of his/her professional work, he/she shall not disclose such information to anyone except with the consent of the person concerned or upon an order of an authorized officer. Chapter-9 Electronic Means and Privacy 19.

Privacy of Electronic Means to be Maintained: (1) Every person shall have the right to maintain the privacy of any personal information, documents, correspondence, data or matters relating to character held in electronic means. (2) No person shall, in an unauthorized manner, obtain information, knowledge, or correspondence held in the electronic means of any person, violate its privacy, or make it available to anyone in an unauthorized manner. (3) No person shall, using any mechanical device, listen to, record or cause to be recorded any communication or conversation conducted through electronic means between two or more persons, except with the consent of the persons concerned or upon an order of an officer authorized under the law. Provided, however, that the provisions of this sub-section shall not apply in the case of a speech or statement made publicly. (4) Notwithstanding anything contained in sub-section (2) or (3), with the consent of the person concerned or by order of an authorized officer, any information, knowledge or correspondence may be listened to, recorded or caused to be recorded. (5) Other provisions relating to the privacy of electronic information and data shall be as prescribed. 20. Relating to Installation of CCTV Cameras in Public Places: (1) If it is necessary to install CCTV cameras in any public place, such cameras may be installed or caused to be installed in places other than toilets, bathrooms, or changing rooms. (2) In places where CCTV cameras are installed pursuant to sub-section (1), arrangements shall be made to provide notice that such cameras have been installed, visible and known to all. (3) Provisions relating to the installation of CCTV cameras in any place shall be as prescribed. 21. Not to Conduct Surveillance or Espionage: No person shall use any electronic means, photography, or any method to conduct surveillance or espionage over a person's residence or any office, or with the intention of obtaining any matter that is confidential under this Act. 22. Not to Use Drones: Except for border areas of the country or public places, no person shall use any type of drone or device of a similar nature in any public body, area of archaeological importance, building of a security agency, protected area or area containing mines and minerals, or the residence of any person without the permission of an authorized officer or such person, nor shall do any act with the intention of obtaining confidential information. Chapter-10 Collection and Protection of Personal Information 23.

Not to Collect Personal Information Except Under Law: (1) No person other than an officer authorized under the law or a person authorized by such officer shall collect, store, protect, analyze, process or publish the personal information of any person. (2) Notwithstanding anything contained in sub-section (1), for the purpose of studying or researching a specific subject or collecting public opinion, information provided by the person concerned may be collected with his/her consent. (3) When collecting information pursuant to

sub-section (2), it shall not be collected without providing the person full information regarding the purpose for which the information is being collected. Explanation: For the purposes of this Section, a notice regarding the subject of data collection published or made public through mass media, addressing the general public, shall be deemed to have provided information. (4) When collecting information pursuant to sub-section (2), the following matters shall be clearly stated:- (a) The time of collection of information, (b) The subject matter of the information, (c) The nature of the information, (d) The purpose of collecting the information, (e) The method and procedure for examining the information, (f) Assurance regarding maintaining the confidentiality of the collected information, (g) Matters including the security of the collected information. (5) When an officer authorized to collect information under the law collects information about any person, it shall be collected by obtaining knowledge from the person concerned himself/herself. (6) Notwithstanding anything contained in sub-section (5), the following persons may provide information on behalf of the following persons:- (a) In the case of a person who has not attained the age of eighteen years or is not of sound mind, his/her guardian or caretaker, provided that providing such information is not against the interest of such person, (b) In the case of another person, an agent or representative authorized by him/her. (7) An officer authorized pursuant to sub-section (1) shall not collect personal information except in the following circumstances:- (a) If such officer collects personal information exercising the authority under the same law under which he/she is authorized to collect it, (b) If there is provision under the prevailing law for such officer to collect such information, (c) If collected in the course of investigation, prosecution or court proceedings of a criminal offence or law enforcement, (d) If the person regarding whom information is collected by an organized institution or public body is holding or is about to hold any position in such institution, or such information is under the approved program of such institution or body. (8) Other provisions relating to the collection, processing, analysis and use of personal data shall be as prescribed. 24.

26. Not to Use Personal Information Without Consent: (1) A public body or organized institution shall not use or give to anyone the personal information collected by it or under its custody or control, without the consent of the person concerned, except in the following circumstances:-

- (a) If the personal information is made public or distributed for the same purpose for which it was collected,
- (b) If requested in writing by an officer authorized to conduct investigation or prosecution in the course of investigation or prosecution of a criminal case,
- (c) If ordered by a court in the course of proceedings of a case pending before the court,
- (d) If a question arises regarding the qualification or any other matter of a person holding a public office under the prevailing law and it needs to be resolved,
- (e) If a question arises regarding a specific matter, and a specific type of information is requested in writing by an authorized officer to resolve it.

(2) Notwithstanding anything contained in sub-section (1), an authorized officer of a body responsible for collecting or protecting personal information may make public or cause to be made public personal information for the purpose of study or research conducted for public purposes in the following circumstances:-

- (a) If the subject being researched cannot be completed without personal identification,
- (b) If providing the personal information relating to the subject being researched does not cause harm or loss to the person concerned,

(c) If the person concerned has given consent at the time of or anytime after receiving the personal information for public purposes.

(3) Notwithstanding anything contained in this Section, for the purposes of an archive officially established by the Government of Nepal or a Provincial Government, personal information may be provided in the following circumstances:-

(a) If the information does not adversely affect the personal status, professional or personal privacy of the person concerned,

(b) If such information is provided for historical research or collection or compilation of historical facts or information,

(c) If it is personal information of any person, and thirty years or more have elapsed since the death of such person,

Provided, however, that if making such personal information public would insult such person or cause any harm, loss or insult to his/her successors or descendants, such information shall not be provided.

(d) If such information has been archived for one hundred years or more. 27.

Not to Process Sensitive Information: (1) A public body shall not process or cause to be processed any sensitive personal information under its custody or control. (2) For the purposes of sub-section (1), the following information shall be considered sensitive personal information of the person concerned:- (a) His/her caste, ethnicity or origin, (b) Political affiliation, (c) Religious faith or belief, (d) Physical or mental health or condition, (e) Sexual orientation or events relating to sexual life, (f) Details relating to property. (3) Notwithstanding anything contained in sub-section (2), such information may be processed in the following circumstances:- (a) In the course of prevention of disease, public health protection, disease diagnosis, medical treatment, management of health institutions and provision of health services related to the relevant subject, by a licensed physician or a health worker under his/her direction, in a manner that does not cause insult or humiliation to the person concerned, (b) If the person concerned has made the information public himself/herself. 28. Application may be Made to Correct Information: (1) If any person feels that any information relating to him/her held under the responsibility, protection or control of a public body is incorrect or not based on facts, he/she may, at any time, submit an application to the concerned public body in the prescribed format to correct and rectify such information. Provided, however, that if he/she has already obtained any profit, benefit or facility based on such information, he/she shall not be allowed to submit an application to correct it. (2) When submitting an application pursuant to sub-section (1), he/she shall submit details of the reason why such information is incorrect or not based on facts, along with evidence supporting or proving the fact or details claimed by him/her. (3) Upon receipt of an application pursuant to sub-section (1), the public body shall conduct an inquiry as prescribed, and if it appears that such information needs to be corrected and rectified, it may make necessary corrections and rectifications. Chapter-11 Offences and Penalties 29.

Offences and Penalties: (1) If any person does or causes to be done any of the following acts, he/she shall be deemed to have committed an offence under this Act:- (a) Any act contrary to sub-sections (1), (2) and (4) of Section 3, (b) Any act contrary to sub-section (2) of Section 4, (c) Any act contrary to sub-section (1) of Section 5, (d) Any act contrary to Section 6, (e) Any act contrary to sub-sections (2), (3) and (4) of Section 7, (f) Any act contrary to Section 9, (g) Any act contrary to sub-sections (2) and (3) of Section 10, (h) Any act contrary to sub-section (3) of Section 11, (i) Any act contrary to sub-section (4) of Section 12, (j) Any act

contrary to sub-section (2) of Section 13, (k) Any act contrary to Section 14, (l) Any act contrary to sub-sections (2) and (3) of Section 15, (m) Any act contrary to Section 16, (n) Any act contrary to Section 18, (o) Any act contrary to sub-sections (2) and (3) of Section 19, (p) Any act contrary to Section 21, (q) Any act contrary to Section 22, (r) Any act contrary to sub-sections (1), (3) and (7) of Section 23, (s) Any act contrary to sub-section (1) of Section 26, (t) Any act contrary to sub-section (1) of Section 27. (2) The penalty for an offence under sub-section (1) shall be imprisonment for a term up to three years or a fine up to thirty thousand Rupees, or both. (3) An offence under clauses (c), (m), (o), (p), (q), (r), (s) or (t) of sub-section (1) shall be a Government of Nepal case, and such an offence shall be deemed to be included in Schedule-1 of the National Criminal Procedure (Code) Act, 2074. 30. May File Complaint: (1) Except for offences mentioned in sub-section (3) of Section 29, if any other offence under this Act is committed, the person concerned may file a complaint in the relevant District Court. (2) When filing a complaint pursuant to sub-section (1), it must be filed within three months from the date of such act. 31. Compensation: (1) If any person suffers any type of harm, loss or damage due to any act deemed an offence under this Act or any other act, the person concerned or the victim may file a complaint in the relevant District Court seeking compensation for such harm, loss or suffering. (2) If a complaint is filed pursuant to sub-section (1), and the relevant District Court finds it appropriate to award compensation, it shall order the offender to pay reasonable compensation to the victim. 32.

34. Not Deemed to be Obstruction: (1) Nothing written in this Act shall be deemed to obstruct the following actions regarding persons referred to in sub-section (2):-

- (a) To obtain any message or information in the course of court proceedings,
- (b) To obtain any personal information or details relating to the investigation or prosecution of any offence under the law,
- (c) To make public details of his/her property under the prevailing law,
- (d) To make public by the concerned body details revealing identity including his/her educational qualification, citizenship, passport, vehicle driver's license,
- (e) To publish or disseminate or make public in any manner any message, information, data, news, photograph obtained or collected in the course of maintaining public interest and transparency or conducting investigative journalism, except matters prohibited by the prevailing law relating to presses and newspapers and national broadcasting, provided it is not contrary to the fundamental norms of an individual's privacy,
- (f) To publish or disseminate the audio-visual and photograph of a person taken at a public statement, opinion expressed publicly by him/her, or a publicly organized event,
- (g) To make healthy comments, with basis, reason or evidence, regarding his/her property and details pursuant to clause (d), or the statement, opinion expressed publicly by him/her, or details relating to his/her public work.

(2) For the purposes of sub-section (1), "person" means the following persons:-

- (a) A person holding a public office,
- (b) A person who has participated in or been recommended for the formal process of appointment, nomination or election to a public office,
- (c) A person who has retired or been released from a public office,

(d) A person who is publicly known or falls within public interest or concern,

(e) A person from whom it is deemed necessary to disseminate or provide information or knowledge to the public due to public interest, integrity or morality, or regarding an act that is contrary to law or is about to occur. 35. Not to Act Contrary to this Act: Every body disseminating public information shall disseminate information in a manner that is not contrary to this Act. 36. Power to Make Rules: The Government of Nepal may make necessary Rules for the implementation of this Act. Nepal Law Commission